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ODPC Registration for Religious Institutions

A sector guide to registration, the section 45(a) basis for processing member data, and an open question on pastoral confidentiality for churches, mosques, temples and faith-based organisations in Kenya.



RELIGIOUS & FAITH-BASED · ODPC REGISTRATION · SECTION 45(A) BASIS · SOCIETIES ACT

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A Sector Guide for Churches, Mosques, Temples and Faith-Based Organisations in Kenya

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KENYA PRIVACY LAW REVIEW · REGISTRATION GUIDE SERIES

ODPC Registration for Religious Institutions

A sector guide for churches, mosques, temples and faith-based organisations in Kenya.

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AT A GLANCE

- “Faith based or religious institutions” is a mandatory ODPC registration category regardless of turnover or staff numbers, confirmed directly on the ODPC's own website and in its published guidance on registration.
- Registering as a society under the Societies Act, Cap 108, to obtain legal personhood is a **separate** obligation from registering with the ODPC as a data controller under section 18 of the Data Protection Act — neither registration satisfies the other.
- Section 45(a) of the Data Protection Act gives a not-for-profit body with a religious aim a specific lawful basis to process sensitive personal data about its members, but only where the processing relates solely to members, and the data is **not disclosed outside the body without consent**.
- Kenya's Evidence Act does **not**, on our review, appear to contain an explicit privilege for confidential communications made to clergy in a pastoral capacity — a preliminary observation requiring independent verification, and pending that verification, pastoral records should be treated with the same care as any other sensitive personal data.
- The membership register the Societies Act itself requires — names, identification numbers, telephone numbers, and addresses of members — substantially overlaps with the data inventory an ODPC application requires, meaning much of the underlying work may already exist in the institution's society-registration file.

01 Introduction

Kenya's religious landscape includes churches, mosques, temples and other faith communities ranging from single-congregation independent churches to large denominational structures with dozens of branches and, in some cases, affiliated schools, hospitals or clinics. Nearly every such institution holds personal data about its members and congregants — names, contact details, giving records, and, very often, the kind of information shared in pastoral counselling or prayer requests that touches on health, marital circumstances, or matters of conscience. The Data Protection Act, 2019 (“the Act”) requires a religious institution to register with the ODPC as a data controller, and, separately, sets out a specific statutory basis on which such an institution may lawfully process sensitive personal data about its members. This Guide addresses both questions, together with the institution's prior and separate obligation to register as a legal entity in the first place.

02 The Legal and Regulatory Framework

The ODPC registration obligation arises from section 18 of the Act, given operational effect by the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 (Legal Notice No. 207 of 2021) (“the Registration Regulations”), which took effect on 14 July 2022. The ODPC's own published guidance — its website FAQs and its Guidance Note on Registration of Data Controllers and Data Processors — confirms that religious institutions and other not-for-profit entities fall within the mandatory registration categories and pay the same modest, flat fee applicable to public and charitable bodies. Separately, a religious institution's underlying legal existence is typically governed by the Societies Act, Chapter 108 of the Laws of Kenya, administered by the Registrar of Societies within the Office of the Attorney General, although some larger denominations or faith-based non-governmental organisations may instead be constituted under the Trustee (Perpetual Succession) Act or the Public Benefit Organizations Act, 2013 — the correct vehicle depends on the institution's specific structure and should be confirmed rather than assumed.

03 Why ODPC Registration Is Mandatory for This Sector

The Registration Regulations exempt data controllers and processors with an annual turnover below KES 5,000,000 and fewer than ten employees from mandatory registration

— but only where the entity does not fall within a list of sectors the Regulations treat as inherently higher-risk regardless of size. “Faith based or religious institutions” is one of those sectors, confirmed in the same terms on the ODPC's own website as the other mandatory categories this series has addressed.

PRACTICAL INSIGHT

A single independent church meeting in a rented hall, run entirely by volunteer leadership with no paid staff, must register with the ODPC exactly as a large denominational headquarters must. Neither the absence of paid staff nor the absence of a permanent building affects the analysis — the sector itself removes the size-based exemption.

04 Two Separate Registrations: Legal Personhood and Data Protection

A religious institution typically first becomes a lawful entity by registering as a society. Section 2 of the Societies Act defines a society to include a club or association of ten or more persons established in Kenya, a definition the Registrar of Societies' own published guidance confirms extends to churches, mosques and temples. Section 4 of the Societies Act requires registration for a society to acquire legal status, and section 4(1) makes it an offence to manage, or assist in managing, a society that ought to be registered but is not. That process itself requires the institution to compile a register of its officials and, under guidelines the Registrar of Societies has applied to religious societies specifically, a list of all members recording their names, identification numbers, telephone numbers, and postal and email addresses.

None of this satisfies the separate obligation to register with the ODPC under section 18 of the Data Protection Act. The two registrations serve different purposes — one confers legal personhood on the institution; the other brings its data processing activities within the ODPC's regulatory oversight — and a religious institution should not assume that completing one discharges the other. In practice, the overlap is a convenience rather than a substitute: the membership data a society-registration file already contains is a substantial part of the data inventory an ODPC application requires, which this Guide addresses in section 8.

05 Processing Sensitive Personal Data as a Religious Body: Section 45

Section 2 of the Act defines “sensitive personal data” to mean data revealing, among other things, a person's conscience, belief, health status, marital status and family details — categories that, in a religious institution's ordinary operations, are touched by pastoral counselling, prayer requests, marriage preparation, and general membership records more or less by default. The Act imposes stricter conditions on processing sensitive personal data than on personal data generally.

Section 45(a) of the Act provides a specific lawful basis relevant to this sector: sensitive personal data may be processed where the processing is carried out in the course of legitimate activities, with appropriate safeguards, by a foundation, association or other not-for-profit body with a religious aim, on two conditions — first, that the processing relates solely to the body's members or to persons who have regular contact with it in connection with its purposes, and second, that the personal data is not disclosed outside that body without the data subject's consent. This is a genuine, sector-specific statutory basis, not a general good-practice recommendation, and it is worth a religious institution's while to understand its two conditions precisely, since each defines the boundary of what the provision actually permits.

PRACTICAL INSIGHT

Section 45(a) is a basis for processing sensitive personal data; it is not, and does not replace, the separate registration obligation addressed in sections 3 and 4 above. An institution can have a perfectly sound section 45(a) basis for its internal pastoral and membership records and still be in breach of the Act for failing to register with the ODPC at all. The two questions — do we have a lawful basis to process this data, and have we registered as required to process any data — are answered separately.

06 Controller, Processor — or Both?

A religious institution is ordinarily a data controller for its own membership, pastoral and financial records. Where a denominational headquarters processes data on behalf of individual congregations — or, conversely, where a local congregation submits member data to a headquarters for centralised record-keeping — the correct controller/processor analysis depends on which body actually determines the purpose and means of that

processing, and should be assessed on the institution's actual governance structure rather than assumed from its position in the denominational hierarchy. Where a religious institution operates an affiliated school, hospital, clinic or counselling centre as a distinct undertaking, that undertaking is very likely to have its own, separate ODPC registration obligation under the mandatory categories addressed in this firm's Education and Healthcare Guides (KPLR/RG/006/2026 and KPLR/RG/001/2026) – running a school does not fall within the religious institution's own registration, and should be assessed and registered on its own footing.

07 Registration Tiers and Fees

Religious institutions fall within the flat fee applicable to public and charitable or faith-based entities, regardless of turnover or staff numbers, as confirmed in the ODPC's own published guidance on registration fees.

Tier	Size Criteria	Registration Fee (once-off)
Micro & Small	1–50 employees; turnover up to KES 5,000,000	KES 4,000
Medium	51–99 employees; turnover KES 5,000,001–50,000,000	KES 16,000
Large	More than 99 employees; turnover above KES 50,000,000	KES 40,000
Public / Charitable or Faith-Based Entities	Regardless of turnover or staff numbers	KES 4,000

A certificate of registration is valid for 24 months from the date of issue and must be renewed at least 30 days before expiry; the renewal fee for this category is currently KES 2,000.

08 Information the ODPC Will Expect to See

Beyond basic establishment details – the certificate of registration issued by the Registrar of Societies, or the equivalent instrument for an institution constituted under a different

vehicle — a complete application requires a clear and internally consistent description of the institution's data processing activities:

- **Categories of data subjects processed** — members and congregants, clergy and staff, volunteers, donors, and, where relevant, children attending Sunday school or youth ministry programmes.
- **Categories of personal data processed** — membership and contact records, financial or giving records tied to an individual's identity, pastoral or counselling notes, and records of baptisms, marriages, dedications or similar life-event ceremonies.
- **The specific purposes** for which data is processed — membership administration, pastoral care, financial administration, and statutory reporting to the Registrar of Societies or, for organisations with tax-exempt status, to the Kenya Revenue Authority, should be distinguished rather than bundled into a single generic purpose.
- **Recipients** to whom data is disclosed — a denominational headquarters where the institution is part of a larger structure, the Registrar of Societies, and any partner ministry or organisation with which member data is shared.
- **Any transfer of data outside Kenya** — relevant to institutions affiliated with an international denomination, mission agency, or diaspora congregation network.
- **The safeguards in place** — particularly for pastoral and counselling records, financial giving records, and any children's ministry data.

09 Where Religious Institutions Get It Wrong

The following gaps are the ones most likely to matter for this sector, each tied to a specific provision addressed earlier in this Guide.

COMMON MISTAKE — TREATING SOCIETIES ACT REGISTRATION AS SUFFICIENT

Assuming that a certificate of registration from the Registrar of Societies discharges the institution's data protection obligations. As section 4 above sets out, this is a separate registration for a separate purpose, and does not satisfy section 18 of the Act.

COMMON MISTAKE — DISCLOSURE OUTSIDE THE BODY WITHOUT CONSENT

Sharing a prayer request list, member directory, or pastoral update with a partner church, a denominational newsletter, or on social media, without the data subject's consent. This falls outside the protection section 45(a) provides, since that provision's second condition requires that data not be disclosed outside the body without consent.

COMMON MISTAKE — USING MEMBER DATA BEYOND THE INSTITUTION'S RELIGIOUS PURPOSES

Using a membership list for an affiliated commercial venture, an unrelated fundraising appeal, or political messaging unconnected to the institution's religious aim. Section 45(a)'s first condition limits the basis to processing that relates solely to members or persons with regular contact with the body in connection with its purposes — processing outside that scope needs its own, separate lawful basis, most likely member consent.

COMMON MISTAKE — ASSUMING PASTORAL RECORDS ARE AUTOMATICALLY PRIVILEGED

Treating counselling or confessional notes as beyond the reach of a data subject access request or an ODPC inquiry simply because they arose in a pastoral setting. As section 12 below explains, this assumption has not been verified against Kenyan evidence law and should not be relied upon without further confirmation.

COMMON MISTAKE — NO DISTINCT TREATMENT OF GIVING AND FINANCIAL RECORDS

Holding individually identifiable tithe, offering or donation records without safeguards distinct from general membership data, notwithstanding that these records reveal a person's financial relationship with the institution in a way many members would consider private.

10 Step by Step: Registration and Responding to a Correction Notice

- Confirm the institution's underlying legal registration — Societies Act, Trustee (Perpetual Succession) Act, or the Public Benefit Organizations Act, 2013 — and gather that certificate before beginning the ODPC application.
- Prepare the data inventory set out in section 8 above; much of the membership component will already exist in the institution's society-registration file.

- Submit the application through the ODPC's online portal and pay the applicable flat fee for this category.
- Where the Data Commissioner is satisfied, a certificate of registration is issued within 14 days of a complete submission.
- Where the Data Commissioner is not satisfied, a written refusal notice is issued within 21 days, setting out the specific reasons for rejection.
- A rejected applicant may cure the identified deficiencies and make a fresh application — this attracts a new registration fee.
- Once issued, the certificate is valid for 24 months and must be renewed at least 30 days before expiry.

11 Beyond Registration: Related Compliance Obligations

Registration is a threshold obligation, not a complete compliance programme. Religious institutions should, in parallel, address the following:

- **Appointment of a Data Protection Officer** — a threshold larger congregations and denominational headquarters processing member data at scale are likely to meet.
- **A Data Protection Impact Assessment** before deploying livestreaming of services, biometric attendance systems, or any large-scale congregant analytics.
- **A privacy notice** explaining to members and congregants what data is collected, for what purposes, and on what basis — including, where relevant, the section 45(a) basis this Guide describes.
- **Engagement with the section 33 parental consent framework** where children participate in Sunday school or youth ministry, addressed in detail in this firm's Education Guide (KPLR/RG/006/2026).
- **A documented retention and disposal policy** for pastoral, financial and membership records.
- **A breach-response procedure** calibrated to the Act's notification timelines.

12 Regulatory Spotlight: Pastoral Confidentiality

DOES KENYAN LAW PROTECT CONFIDENTIAL PASTORAL COMMUNICATIONS? — AN OPEN QUESTION

No published ODPC determination involving a Kenyan religious institution was identified in preparing this Guide, despite a genuine search. In place of a case, this section addresses a related and, in our assessment, more consequential question for this sector: whether Kenyan law recognises any distinct legal protection for confidential communications made to clergy in a pastoral or spiritual capacity, comparable to the clergy-penitent or priest-penitent privilege recognised by statute in a number of other jurisdictions.

Kenya's Evidence Act, Chapter 80, sets out a defined set of evidentiary privileges, including privileges attaching to communications with an advocate, communications during marriage, and certain official communications and records. Based on our review of the Act's structure, it does not appear to contain a distinct, named privilege for confidential pastoral or confessional communications.

This is a preliminary observation, not a concluded legal opinion, and we recommend it be independently verified — including against any relevant case law interpreting the Act's general privilege provisions — before the firm advises any client on this specific point. Pending that verification, the conservative and, in our view, the safer working position for a religious institution is to assume that pastoral and counselling records are not automatically shielded from a data subject access request, a lawful court order, or an ODPC investigation simply because they arose in a spiritual context, and to handle them with at least the same safeguards applied to any other sensitive personal data the institution holds under section 45 of the Act.

13 Practical Compliance Checklist

BEFORE YOU APPLY

- ☒ Confirmed the institution's underlying legal registration (Societies Act, Trustee Act, or PBO Act) and gathered the relevant certificate.
- ☒ Confirmed the institution's correct ODPC fee category (public/charitable/faith-based, flat fee regardless of size).
- ☒ Prepared a complete data inventory: members, clergy/staff, volunteers, donors, and children in youth ministry, each stated separately.
- ☒ Identified which processing activities rely on the section 45(a) basis, and confirmed both of its conditions are met for each.

- ☒ Documented safeguards specific to pastoral records, financial giving records, and any children's ministry data.
- ☒ Identified any cross-border element — an international denomination, mission agency, or diaspora congregation network.

AFTER YOU APPLY

- ☒ Diarised the 14-day review window and the 21-day refusal-notice window.
- ☒ If a correction or refusal notice is received, addressed every point raised before resubmitting.
- ☒ Diarised the 24-month certificate expiry and the 30-day renewal deadline.

ONGOING

- ☒ Reviewed all disclosures of member or prayer-request data outside the institution for documented consent.
- ☒ Reviewed any use of membership data for purposes beyond the institution's religious aim for a separate lawful basis.
- ☒ Treated pastoral and counselling records with the same safeguards as other sensitive personal data, pending verification of the privilege question in section 12.
- ☒ Engaged the section 33 parental consent framework for any children's ministry data collected.
- ☒ Put in place a retention and disposal policy for pastoral, financial and membership records.

14 Conclusion

A Kenyan religious institution's data protection obligations rest on firmer and more specific statutory ground than is often assumed — a named mandatory registration category, a dedicated processing basis in section 45(a) tailored to bodies with a religious aim, and a membership-register requirement under the Societies Act that does much of an ODPC application's groundwork in advance. What the law does not yet clearly provide, on the evidence available to us, is any special evidentiary shelter for what is said within pastoral care. Until that question is resolved with more certainty, the responsible course for any religious institution — and for any adviser assisting one — is to build compliance on the provisions that are clearly established, and to treat the ones that are not as open questions rather than assumptions.

KEY TAKEAWAYS

- “Faith based or religious institutions” is a mandatory ODPC registration category regardless of turnover or staff numbers, confirmed directly on the ODPC's own website and in its published guidance on registration.
- Registering as a society under the Societies Act, Cap 108, to obtain legal personhood is a **separate** obligation from registering with the ODPC as a data controller under section 18 of the Data Protection Act — neither registration satisfies the other.
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- The membership register the Societies Act itself requires — names, identification numbers, telephone numbers, and addresses of members — substantially overlaps with the data inventory an ODPC application requires, meaning much of the underlying work may already exist in the institution's society-registration file.

AUTHOR'S PERSPECTIVE

We have written this Guide more cautiously than most in this series, and deliberately so: a congregation trusts its leadership with information it would not share elsewhere, and that trust deserves a level of legal rigour that does not take shortcuts to sound authoritative. Where the law gives a clear answer — as it does on registration, and on section 45(a) — we have said so plainly. Where it does not yet give one, as with pastoral confidentiality, we think the more useful service to a client is to say that plainly too, rather than to manufacture false certainty.

How We Can Help. We advise churches, mosques, temples and faith-based organisations on ODPC registration, the section 45(a) basis for processing member data, and the safeguards pastoral and financial records require. If any part of this Guide describes your institution, we would be glad to talk it through with you.

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